

Illustrations by TANMOY CHAKRABORTY

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nul marriages and is disingenuous in many ways.

Meanwhile, many argue that a UCC violates the freedom of religion under Articles 25 and 26. "India is a multi-faith country, and every citizen is guaranteed to practise and profess their faith and religious beliefs, and to act on and preach the same," said the Muslim Personal Law Board in November 2021. The SC, however, observed that the UCC doesn't impinge on the "right to religion".

Another problem with the UCC is that there is no single draft on it. Nobody knows what shape it will take, what provisions it will cover and how it will affect the existing laws of various communities. Many suspect—more so because the BJP and RSS have been batting for it—that the UCC will scrap the personal laws of minority communities in favour of majoritarian Hindu laws.

However, a UCC will impact Hindu laws as well. For example, Section 2(2) of the Hindu Marriage Act says its provisions will not apply to the Scheduled Tribes. Sections 5(5) and 7 of the law state that customary practices will override the provisions. The UCC won't allow for such exceptions. The coexistence of personal laws with several criminal laws also adds to the confusion. For example, Section 125 of the Criminal Procedure Code (CrPC) too provides for the maintenance for wife, children and parents. Penal laws for protection against dowry and domestic violence also overlap the scope of personal laws.

A large section of the population, including Muslims, has already taken recourse to the various sections of the law to resolve civil disputes. The dependence on religious personal laws is gradually dwindling. While debates continue over the sagacity of a UCC, here is a cursory glance over the various personal laws in India and how the UCC may impact them. ■

HOW THE CODE CAN IMPACT MARRIAGES

A common law can fix minimum legal age for marriage, abolish bigamy and polygamy and encourage inter-faith marriages

MARRIAGE LAW FOR HINDUS, BUDDHISTS, JAINS

Marriages in the three religions are governed by the Hindu Marriage Act (HMA), 1955

Special provisions the UCC may abolish:

- Section 2(2) of the HMA, which excludes Scheduled Tribes from the applicability of the law; Sections 5(5) & 7, which allow customary practices to override the provisions of the law

MARRIAGE LAW FOR MUSLIMS

- The Muslim Personal (Shariat) Application Act, 1937, states that Shariat or the Islamic law will guide marriage, divorce, and maintenance

Special provisions the UCC may abolish:

- Minimum age of marriage under Shariat, which is 15 years or puberty
- Men having up to four wives, provided they treat all of them equally
- Marriage between a Muslim man and a non-Muslim woman, which is not considered void but irregular, and can be validated if the woman converts to Islam